

IN THE DISTRICT COURT OF BRYAN COUNTY OCT 19 2017
STATE OF OKLAHOMA

STATE OF OKLAHOMA,
Plaintiff,

Vs.

JUYING WANG,
Defendant.

DONNA ALEXANDER
COURT CLERK
BY *[Signature]* Deputy

Case NO. CM-2017-251

DEFENDANT'S MOTION TO DISMISS BASED UPON
THE DEFENSE OF ENTRAPMENT

COMES NOW, the Defendant, by and through her counsel of record, and moves this Honorable Court to dismiss Count One (1) of this information on the grounds and for the reason that the undercover Durant Police Officer tried to induce the Defendant to commit the crime as alleged by offering fifty dollars (\$50.00) to engage in a sexual act. The actions and statements of the undercover Durant Police Officer mandate that this Honorable Court consider dismissal of Count One (1) as a matter of law after a pre-trial evidentiary hearing or upon an agreed stipulation between the prosecution and the defense.

In support of this Motion, Counsel would remind the Court that the Defendant is a Chinese citizen who understands and speaks very little English. A certified Chinese Court interpreter would be required at the jury trial currently scheduled for November 8, 2017 at 9:00

The Defendant is in Tulsa County Detention Center, Tulsa, OK
a.m. The Defendant was in an ICE custody by the Federal authorities and has been deported
[Signature]
~~back to her home country, China, on or about September 21, 2017.~~

The Defendant is charged with violating 21 O.S. Sec 1029 (A)(2), Engaging in Prostitution, a misdemeanor by unlawfully, willfully and wrongfully soliciting an undercover Durant Police Officer to commit an act of lewdness with her by asking the officer to engage in oral sodomy as set forth in Count One (1) of the information.

Durant Police Officer to commit an act of lewdness with her by asking the officer to engage in oral sodomy as set forth in Count One (1) of the information.

This allegation is not supported by the police reports provided in discovery. The officers write:

Three Asian females who did not speak very good English. After the massage was over, the officer asks the female doing the massage later identified as Xiaohong Xu if she done anything extra..... who didn't speak English well so she brought another female, Juying Wang, who also doesn't speak good English, to the room. It was decided that Agent Forney would get a hand job from both girls at the same time for fifty dollars per girl. At the conclusion of the massage, the undercover agent was offered a "hand job" with two female worker's for \$50 each. The agent broke contact....

Clearly the undercover officer was the one who tried to solicit Xioahong Xu and Juying Wang for a sexual act. There was no exchange of money as between the officer and the Defendant and the officer ASSUMED that an agreement was reached and the agent broke contact with the Defendant. There is nothing in the police report that would support an allegation that Juying Wang ever asked the undercover officer to engage in oral sodomy. That allegation is simply not true.

The defense of ENTRAPMENT is set forth in Oklahoma Uniform Jury Instrucitons 8-25 and 8-26, a copy of which are attached to this Motion. Jessica Lin has no prior criminal history of convictions. OUJI-CR-8-25 provides:

Where a person has no previous intent or purpose to violate the laws, but is induced or persuaded by law enforcement officers to commit a crime, she is

entitled to the defense of entrapment, because the law as a matter of policy forbids a conviction in such a case.

As referenced in the Committee Comments, citing *Jacobsen v. United States*, 503 U.S. 540, 554, the prosecution was required to offer evidence of defendant's predisposition to violate the law independent of the government's acts and beyond a reasonable doubt.

In Oklahoma the defense of entrapment may be determined by who first suggested perpetration of the criminal act.

In *Hunnicut v. State*, 1998 OK CR 91 at paragraph 3 states:

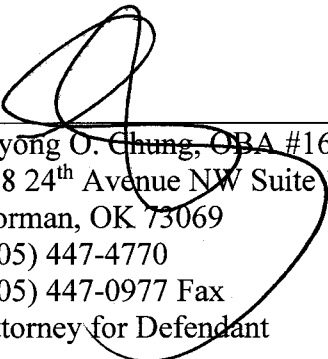
The defense of entrapment is not available UNLESS THE OFFICER of the person acting under his direction FIRST SUGGESTED PERPETRATION OF THE CRIMINAL ACT, or lured or persuaded the defendant to partake of the criminal conduct.

Moreover, the issue of entrapment can be raised by the evidence presented by the prosecution as well as the defense. Once the defense of entrapment is properly raised, the burden of proving the nonexistence of the defense and the predisposition of the defendant rests on the State, and the jury must be so instructed. See *McInturff v. State*, 554 P. 2d 837 (1976) Indeed, OUJI-CR-8-26 states:

It is the burden of the State to prove beyond a reasonable doubt that no entrapment occurred. If you find that the State has failed to sustain that burden, then the defendant must be found not guilty.

WHEREFORE, counsel for the Defendant prays that this Honorable Court set a date certain in advance of the trial date of November 8, 2017 at 9:00 a.m. to rule on the Motion as a matter of law.

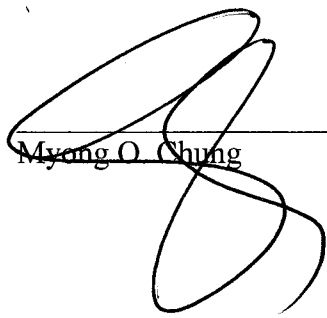
Respectfully submitted,



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Attorney for Defendant

CERTIFICATE OF SERVICE

I, Myong O. Chung, hereby certify that I mailed/faxed a true and correct copy of Defendant's Motion to Dismiss Based Upon the Defense of Entrapment, on this 11 day of October, 2017 to Bryant County District Attorney's office.



Myong O. Chung

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